

Jurisdiction Selection Clause Template - United States (Delaware)

Comprehensive enterprise drafting template for governing law, venue, and dispute routing.

1. Purpose and Use

This template is a drafting baseline for master agreements and statements of work. It is intended for enterprise procurement, cross-border service delivery, and compliance-sensitive engagements. Replace bracketed fields before signature.

2. Governing Law and Jurisdiction Clause

Governing Law and Jurisdiction. This Agreement is governed by the laws of [Jurisdiction], excluding conflict-of-law principles. Subject to the dispute mechanism selected below, courts located in [Venue] have exclusive jurisdiction over disputes arising out of or in connection with this Agreement.

3. Arbitration Option

Any dispute, controversy, or claim arising out of or in connection with this Agreement will be finally resolved by arbitration under [Arbitration Rules]. The seat of arbitration is [Seat], the language is English, and the tribunal will consist of [one/three] arbitrator(s).

4. Interim and Injunctive Relief

Nothing in this clause prevents either party from seeking urgent interim, injunctive, or protective relief from a court of competent jurisdiction to prevent unauthorized disclosure, misuse of confidential information, or irreparable harm to intellectual property rights.

5. Service of Process and Notices

Each party appoints an authorized notice address in writing. Formal legal notices, including service of process where permitted, will be sent to those addresses and deemed received under the notice mechanics set out in the Agreement.

6. Mandatory Law Savings

If mandatory law in any applicable jurisdiction overrides part of this clause, only the non-compliant portion will be adjusted to the minimum extent required, and the remainder of this clause will continue in full force.

7. Drafting Checklist

- Confirm enforceability with local counsel.
- Align with liability, indemnity, and data transfer clauses.
- Confirm whether arbitration, court venue, or hybrid model is preferred.
- Ensure consistency with parent-company and affiliate contracting structure.

8. Jurisdiction-Specific Guidance

US (Delaware) Addendum: Confirm federal/state court venue preference, jury trial waiver strategy, and class-action language alignment where legally appropriate.

9. Legal Validation

This template is not legal advice. Final language must be validated by qualified legal counsel before execution.